

HOUSE BILL 419

By Alexander

AN ACT to amend Tennessee Code Annotated, Title 49,
relative to electronic devices.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Title 49, Chapter 6, Part 3, is amended by
adding the following as a new section:

(a) As used in this section, "electronic device" means a portable or handheld
device that is capable of transmitting and receiving data wirelessly, including, but not
limited to, mobile phones, smartphones, tablets, and other similar devices.

(b) Each LEA and public charter school shall prohibit a student enrolled in the
LEA or public charter school from displaying, using, or accessing an electronic device
during the school day unless the electronic device is:

(1) Provided to the student by the LEA or public charter school;

(2) Authorized for use during the school day pursuant to the policy
adopted by the local board of education or public charter school governing body
in accordance with subsection (c); or

(3) Being used by a student who has a disability for the operation of
assistive technology to increase, maintain, or improve the student's functional
capabilities, or pursuant to a student's individualized education program (IEP)
under the Individuals with Disabilities Education Act (20 U.S.C. § 1400 et seq.),
or a Section 504 plan under the Rehabilitation Act (29 U.S.C. § 701 et seq.).

(c)

(1) Each local board of education and public charter school governing body shall develop and adopt a policy to effectuate this section. A policy adopted pursuant to this subsection (c):

(A) May categorically ban the use of certain electronic devices in designated areas, such as libraries, laboratories, and examination halls;

(B) May establish an exception to the general prohibition in subsection (b) in certain situations, including, but not limited to, emergency situations, and in certain areas, including, but not limited to, one (1) or more of the areas listed in subdivision (c)(1)(A); and

(C) Must establish a process by which parents will be contacted in the event of an emergency or possible emergency occurring at the school at which the parent's student is enrolled to ensure that the absence of, or restricted access to, electronic devices during the school day does not prevent parents from receiving notice of an emergency.

(2) Each LEA and public charter school shall submit its policy to the department of education no later than July 31, 2025.

SECTION 2. This act takes effect upon becoming a law, the public welfare requiring it, and applies to the 2025-2026 school year and each school year thereafter.